**FULL TEXT OF MEASURE K**

**RESOLUTION NO. 099-2026 OF THE BOARD OF SUPERVISORS OF THE COUNTY OF EL DORADO**

**SETTING FOR MAILED BALLOT ELECTION A MEASURE TO IMPOSE A SPECIAL TAX FOR THE PURPOSE OF PROVIDING ROAD IMPROVEMENT AND MAINTENANCE SERVICES FOR THE TEGRA ROAD ZONE OF BENEFIT #98123 WITHIN COUNTY SERVICE AREA #9**

**WHEREAS,** the Board of Supervisors of the County of El Dorado formed County Service Area (CSA) No. 9 pursuant to Title 3, Division 2, Part 2, Chapter 2.2 of the California Government Code and established zones of benefit within CSA No. 9; and

**WHEREAS,** this Board formed the Tegra Road Zone of Benefit No. 98123 on August 6, 1985 by Resolution 211-85 for the purposes of providing road improvements and maintenance services; and

**WHEREAS,** the extended services provided within CSA No. 9 zones are authorized services pursuant to Government Code section 25213; and

**WHEREAS,** California Government Code section 25215.2, together with section 25217.4, expressly authorizes a zone within a county service area to levy a special tax for road improvement and maintenance services subject to voter approval; and

**WHEREAS,** pursuant to California State Law, the Board of Supervisors is required to place before the electorate the approval of the measure as shown on Exhibit A before the special tax can be levied, or increased over the amount previously approved by the electorate; and

**WHEREAS,** the County Registrar of Voters has determined that sixty-two (62) registered voters reside within the zone of benefit boundaries; and

**WHEREAS,** such special tax amount increase shall take effect only if approved by a two-thirds majority of the voters casting a ballot in the special tax ballot proceeding; and

**WHEREAS,** the zone advisory committee has determined an annual special tax amount of $520.00 annually adjusted for cost of living using the Engineering New Record Construction Cost Index for each parcel of land, not to exceed 3% annually, whether it is improved or unimproved regardless of use, is reasonable and sufficient to provide road improvement and maintenance services within the zone of benefit for the fiscal year 2027/2028, and thereafter; and

**WHEREAS,** if the measure as shown on Exhibit A does not pass, the existing service charge of $260.00 shall remain in effect.

**NOW, THEREFORE, BE IT RESOLVED** by the Board of Supervisors that:

1. The measure shown on Exhibit A shall be submitted to the voters of the Tegra Road Zone of Benefit 98123 within County Service Area 9.
2. The El Dorado County Registrar of Voters shall submit the measure as shown on Exhibit A to the electorate in a mailed ballot election to be held on November 3, 2026.

3. The tax as shown on Exhibit A, if approved, shall appear as a separate item on the tax bill of each affected parcel and shall be collected at the same time and in the same manner as county ad valorem property taxes are collected as set forth in the applicable provisions of the Revenue and Taxation Code, and shall be subject to the same penalties and the same procedure and sale in case of delinquency as provided for such taxes. All laws applicable to the levy, collection, and enforcement of county property taxes shall be applicable to the tax.

4. The Director of Transportation, or designee, is delegated the authority to annually ajust the rate of the tax for cost of living using the Engineering News Record Construction Cost Index, except that the adjustment shall not exceed 3 % annually.

5. The special tax is subject to the accountability measures required by State Law, including Government Code sections 50075.1.

6. Notification shall be provided of the special tax increase, if approved, to each non-resident property owner within the zone boundaries, in accordance with the requirements of Government Code section 54930.

7. The special tax amount shown on Exhibit A shall take effect and be imposed only of it is approved by a two-thirds majority of the votes cast on the measure in the election to be conducted on November 3, 2026.

   "Shall the measure to levy an annual special tax in an amount of $520.00 with annual adjustments tied to the Engineering News Record Construction Cost Index, not to exceed 3% annually, on each parcel of land within the Tegra Road Zone of Benefit commencing fiscal year 2027/2028, continuing for an unlimited duration, to be used only for road improvements and maintenance and generating an annual revenue of approximately $11,960.00, to replace the current benefit assessment of $260.00, be adopted?"

****NO ARGUMENTS FOR OR AGAINST THIS MEASURE WERE SUBMITTED****

## IMPARTIAL ANALYSIS OF MEASURE K

Measure K (the "Measure"), if approved by two-thirds of the voters voting thereon, would authorize the levy of a special tax at the rate of $520 per parcel (whether improved or unimproved) per year within the Tegra Road Zone of Benefit #98123 of County Service Area 9 (the "Zone"). This Measure was placed on the ballot by the Board of Supervisors of the County of El Dorado at the request of the advisory committee for the Zone pursuant to Resolution No. 099-2026, which was passed at an official meeting of the Board of Supervisors on June 16, 2026.

If approved, the special tax authorized by this Measure will be used solely for the purpose of road improvements and maintenance services within the Zone. The amount of the special tax may be adjusted annually in accordance with the Engineering News Record Construction Cost Index, not to exceed 3% annually. The special tax authorized by this Measure would become effective in Fiscal Year 2027/2028 and remain in effect until modified or repealed by the voters. The special tax authorized by this Measure is expected to generate revenue of approximately $11,960 per year. If the Measure is approved, the special tax would replace an existing assessment of $260 per parcel. If the Measure is not approved, the existing assessment of $260 per parcel will remain in effect.

State law requires the proceeds from the special tax be applied only to the identified purposes and that an annual report be made indicating the amount of funds collected and expended and the status of any project required or authorized to be funded by the proceeds.

The special tax authorized by this Measure will be listed as a separate item on the county property tax bill for each affected parcel of land and will be collected in the same manner as the general property tax. All laws applicable to the levy, collection, and enforcement of county property taxes, including the provisions for penalties and the procedures for sale of the property in case of delinquency, shall also apply to the special tax.

A "YES" vote is a vote to authorize the levy of the annual special tax in an amount of $520 per parcel, as provided in the Measure.

A "NO" vote is a vote against the levy of the annual special tax.

David A. Livingston
El Dorado County
County Counsel